

FEDERAL GOVERNMENT FAILURE DOCUMENTATION

For Court Papers - Why Emergency Measures Must Protect This Family

Prepared for Court Filing Date: April 5, 2026 **Status:** Complete documentation of federal-level failures

EXECUTIVE SUMMARY FOR JUDGE

This section documents that the systemic failure extends BEYOND Quebec Government to the Federal Government of Canada. Multiple federal agencies failed this family:

- x Federal MPs (ghosted)
- x Federal Senators (no response)
- x Governor General's office (weaponized mental health services)
- x RCMP (harassment via wellness checks)
- x Canadian Human Rights Commission (case reference)
- x Assembly of First Nations (no intervention)

IMPORTANT NOTE FOR JUDGE: These federal failures are documented here to show the complete systemic abandonment, but are NOT part of the Quebec lawsuit. They are part of a SEPARATE federal investigation that will proceed after legal funding is obtained.

WHY THIS MATTERS FOR EMERGENCY MEASURES: Because the family has been failed by ALL levels of government (federal, provincial, municipal), emergency protective measures are NECESSARY to protect them from ongoing harm.

SECTION 1: FEDERAL ELECTED OFFICIALS - GHOSTED

Members of Parliament (MPs) Contacted

Sean Fraser (MP - Central Nova)

- **Party:** Liberal
- **Contact:** sean.fraser@parl.gc.ca | (902) 867-2687
- **Date Contacted:** 2023-2024
- **Request:** Intervention on DPJ/IVAC files, application of Jordan's Principle
- **Response:** GHOSTED - No substantive response
- **Evidence:** Documented email correspondence, no reply received
- **Impact:** Federal MP failed to intervene on federal legal obligation (Jordan's Principle)

Annie Koutrakis (MP - Vimy)

- **Party:** Liberal
- **Contact:** annie.koutrakis@parl.gc.ca
- **Date Contacted:** 2023-2024
- **Request:** Federal intervention on systemic child welfare failures
- **Response:** GHOSTED - Generic automated email only
- **Evidence:** Email correspondence with no substantive reply
- **Impact:** Federal MP failed to address federal legal obligation

Federal MPs - General Pattern

- **Total MPs Contacted:** 50+ across federal, provincial, municipal levels
- **Response Rate:** Less than 5% substantive response
- **Pattern:** Automated emails, no follow-up, no intervention
- **Impact:** Complete federal government silence

Federal Ministers Contacted

Minister of Indigenous Affairs

- **Date Contacted:** 2023-2024
- **Request:** Application of Jordan's Principle
- **Response:** GHOSTED - No response
- **Impact:** Federal minister responsible for Indigenous child welfare failed to respond

Minister of Justice

- **Date Contacted:** 2023-2024
- **Request:** Investigation into systemic failures
- **Response:** GHOSTED - No response
- **Impact:** Federal minister responsible for justice failed to respond

Other Federal Ministers

- **Total Ministers Contacted:** 10+
- **Response Rate:** 0% substantive response
- **Pattern:** Complete silence
- **Impact:** Federal government completely abandoned family

SECTION 2: CANADIAN SENATORS - NO INTERVENTION

Indigenous Senators Contacted

Patrick Brazeau (Indigenous Senator)

- **Position:** Senator, Indigenous representative
- **Date Contacted:** Early 2026
- **Request:** Intervention on Indigenous child welfare crisis

- **Response:** NO INTERVENTION
- **Impact:** Indigenous senator failed to advocate for Indigenous child

Michele Audette (Indigenous Senator)

- **Position:** Senator, former co-commissioner of MMIWG National Inquiry
- **Background:** Expertise in Indigenous justice and missing/murdered Indigenous women
- **Date Contacted:** Early 2026
- **Request:** Intervention on systemic Indigenous child welfare failure
- **Response:** NO INTERVENTION
- **Impact:** Indigenous senator with relevant expertise failed to act

Paul Prosper (Indigenous Senator)

- **Position:** Senator, Indigenous representative
- **Date Contacted:** Early 2026
- **Request:** Intervention on Indigenous child welfare
- **Response:** NO INTERVENTION
- **Impact:** Indigenous senator failed to advocate

Non-Indigenous Senators Contacted

- **Total Senators Contacted:** 15+
- **Response Rate:** Minimal
- **Pattern:** No substantive intervention
- **Impact:** Senate failed to address systemic Indigenous child welfare failure

Why This Matters

Indigenous senators have expertise and responsibility to advocate for Indigenous peoples. Their failure to intervene demonstrates:

- x Systemic indifference even among Indigenous politicians
- x Failure of institutional safeguards

- x No alternative recourse for family
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SECTION 3: GOVERNOR GENERAL'S OFFICE - WEAPONIZED MENTAL HEALTH

The Call to Governor General's Office

Date: Late February 2026

After exhausting every other option:

- Every provincial ministry: GHOSTED
- Every federal MP: GHOSTED
- Every senator: NO INTERVENTION
- Every national organization: NO RESPONSE

The family made a call to the office of **Mary Simon, Governor General of Canada**.

Request

- Assistance with systemic child welfare crisis
- Intervention on federal legal obligations (Jordan's Principle)
- Emergency protective measures

Response

- **WEAPONIZED MENTAL HEALTH SERVICES**
- Four wellness checks in 35 days
- RCMP showed up at door
- Not to help, but seemingly to intimidate
- Parent who asked for help was targeted

The Wellness Checks

Timeline of RCMP Visits

Date	Time	Reason	Officer	Outcome
Feb 28, 2026	Morning	Wellness check	RCMP Officer #1	Intimidation
Mar 5, 2026	Afternoon	Wellness check	RCMP Officer #2	Intimidation
Mar 12, 2026	Evening	Wellness check	RCMP Officer #3	Intimidation
Mar 19, 2026	Morning	Wellness check	RCMP Officer #4	Intimidation

Total: 4 wellness checks in 35 days (Feb 28 - Mar 19, 2026)

Laws Violated

Violation 1: Weaponization of Mental Health Services

What Happened:

- Governor General's office coordinated with RCMP
- Mental health services used as tool of intimidation
- Parent targeted for seeking help

Laws Violated:

- **Canadian Charter of Rights and Freedoms, Section 2(b):** Freedom of expression (right to petition government)
- **Canadian Charter, Section 7:** Right to life, liberty, security of person
- **Criminal Code, Section 264:** Harassment is illegal
- **Mental Health Act:** Mental health services cannot be weaponized

Why This Violates the Law:

- Seeking help from Governor General is protected expression
- Using mental health services to intimidate is illegal
- Harassment of person seeking government assistance is criminal

Violation 2: RCMP Harassment

What Happened:

- Four wellness checks in 35 days
- Targeted parent who asked for help
- Created climate of fear and intimidation

Laws Violated:

- **Criminal Code, Section 264:** Harassment
- **Criminal Code, Section 423:** Intimidation
- **Canadian Charter, Section 7:** Right to security of person
- **RCMP Code of Conduct:** Prohibition on harassment

Why This Violates the Law:

- Wellness checks are legitimate tool, but 4 in 35 days is harassment
- Targeting person who sought government help is retaliation
- Creates chilling effect on right to petition government

Violation 3: Governor General's Office Participation

What Happened:

- Governor General's office participated in silencing family
- Not through direct refusal, but through intimidation
- Office of Crown's representative weaponized against citizen

Laws Violated:

- **Crown Liability and Proceedings Act:** Crown cannot participate in harassment
- **Canadian Charter, Section 2(b):** Freedom of expression
- **Duty of Crown:** Crown must act in good faith toward citizens
- **Public Service Code of Conduct:** Public servants must act ethically

Why This Violates the Law:

- Governor General's office represents Crown
 - Crown cannot weaponize services against citizens
 - Violates fundamental duty of Crown toward subjects
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SECTION 4: RCMP - HARASSMENT & INTIMIDATION

RCMP Involvement

Wellness Checks as Harassment

Official Purpose of Wellness Checks:

- Check on person's safety and wellbeing
- Offer assistance and resources
- Legitimate mental health support tool

How RCMP Used Wellness Checks:

- Four checks in 35 days (excessive)
- Targeted parent who sought government help
- Created climate of fear and intimidation
- Appeared designed to discourage further requests for help

RCMP Recording Evidence

Evidence Available:

- 7 cameras recording audio/video of wellness checks
- Complete record of RCMP interactions
- Evidence of intimidation tactics
- Evidence of excessive frequency

Laws RCMP Violated

1. **Criminal Code, Section 264:** Harassment

- Repeated contact (4 wellness checks)
- Designed to intimidate
- Reasonable person would feel harassed

2. Criminal Code, Section 423: Intimidation

- Threatening conduct
- Designed to compel person to abstain from lawful conduct
- Designed to prevent petition to government

3. RCMP Code of Conduct:

- Prohibition on harassment
- Requirement to treat public with respect
- Prohibition on abuse of authority

4. Charter, Section 7: Right to security of person

- Wellness checks created climate of fear
- Person targeted for seeking government help

Why This Matters for Emergency Measures

RCMP harassment demonstrates:

- x Law enforcement weaponized against victim
- x Person targeted for seeking help
- x Climate of fear and intimidation
- x No safe recourse for family

Emergency measures are necessary to protect family from ongoing RCMP harassment.

SECTION 5: CANADIAN HUMAN RIGHTS COMMISSION (CHRC)

CHRC Case Reference

Case Number: 100021349

Status: Complaint filed with Canadian Human Rights Commission **Date Filed:** 2024

Complaint: Systemic discrimination against Indigenous family **Basis:** Canadian Human Rights Act violations

Violations Claimed

1. Discrimination Based on Indigenous Status

- Quebec Government agencies discriminated based on Indigenous identity
- DPJ, IVAC, Solidarité Sociale all failed Indigenous family
- Non-Indigenous families would have received better treatment

2. Discrimination Based on Disability

- Barran has pre-existing medical conditions (paraparesis, biotinidase deficiency)
- Government agencies discriminated based on disability
- Failed to provide required accommodations

3. Discrimination Based on Family Status

- Multicultural family (French, Irish, Canadian, Haitian, Aboriginal, Italian)
- Government agencies discriminated based on family composition
- Failed to recognize collective care model

CHRC Response

Status: Limited response **Limitations Cited:** CHRC claimed limited powers **Outcome:** No substantive investigation **Impact:** Federal human rights body failed to investigate

Why This Matters

CHRC case demonstrates:

- x Federal human rights body powerless or unwilling to act
- x Systemic discrimination documented but not addressed
- x No federal recourse for discrimination
- x Family has no protection from human rights violations

Emergency measures are necessary because federal human rights protections failed.

SECTION 6: ASSEMBLY OF FIRST NATIONS (AFN)

AFN Contact & Response

Date Contacted: 2024-2026

Request: Intervention on systemic Indigenous child welfare failure **Basis:** AFN mandate to advocate for First Nations peoples **Expected Response:** AFN advocacy and support

Actual Response

Status: NO SUBSTANTIVE INTERVENTION **Pattern:** Similar to other organizations
Impact: National Indigenous organization failed to advocate

Why This Matters

AFN is the national representative body for First Nations peoples. Their failure to intervene demonstrates:

- x Even national Indigenous organizations unable or unwilling to help
- x Systemic failure affects even Indigenous advocacy structures
- x No institutional protection for Indigenous children
- x Family completely isolated from support systems

Emergency measures are necessary because even Indigenous advocacy organizations failed.

SECTION 7: WHY FEDERAL FAILURES ARE NOT IN QUEBEC LAWSUIT

Separate Federal Investigation

Status: Federal violations documented but NOT included in this Quebec lawsuit

Reason: Separate federal investigation pending **Timeline:** Will proceed after legal funding obtained

Why They're Separate

1. Different Jurisdiction:

- Quebec lawsuit: Quebec Government agencies (DPJ, IVAC, Solidarité Sociale)
- Federal investigation: Federal agencies (MPs, Senators, Governor General, RCMP, CHRC, AFN)

2. Different Legal Basis:

- Quebec lawsuit: Quebec Charter, Quebec laws
- Federal investigation: Canadian Charter, Criminal Code, Canadian Human Rights Act

3. Different Remedies:

- Quebec lawsuit: Provincial court remedies
- Federal investigation: Federal court, criminal charges, international complaints

4. Strategic Reasons:

- Focus Quebec lawsuit on provincial failures
- Pursue federal investigation separately

- Prevent federal government from claiming provincial responsibility
- Establish clear accountability at each level

Federal Violations Will Be Pursued

Once legal funding obtained:

1. Criminal charges against RCMP officers (harassment, intimidation)
 2. Federal court lawsuit against Governor General's office
 3. Federal court lawsuit against federal MPs (failure to fulfill duties)
 4. International human rights complaints
 5. Federal whistleblower protections claim
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SECTION 8: WHY EMERGENCY MEASURES MUST PROTECT THIS FAMILY

Complete Government Abandonment

The family has been failed by:

Level	Agency	Response
Quebec	DPJ	Withdrew services
Quebec	IVAC	Underpaid 87%
Quebec	Solidarité Sociale	Harassed family
Quebec	CDPDJ	Refused investigation
Quebec	Protecteur du citoyen	Limited response
Federal	MPs	Ghosted
Federal	Senators	No intervention
Federal	Governor General	Weaponized services
Federal	RCMP	Harassment
Federal	CHRC	Limited response
Federal	AFN	No intervention

Result: COMPLETE GOVERNMENT ABANDONMENT

Ongoing Threats

The family faces ongoing threats from:

- x RCMP harassment (wellness checks)
- x Governor General's office intimidation
- x Government agencies' continued failures
- x Coordinated silence across all levels

Emergency Measures Necessary

Emergency protective measures are NECESSARY because:

1. **No Safe Recourse:** Every government agency has failed
2. **Active Harassment:** RCMP conducting wellness checks

3. **Intimidation:** Governor General's office weaponizing services
4. **Ongoing Danger:** No protection from government agencies
5. **Isolation:** Family has no institutional support

What Emergency Measures Should Include

1. Protection from RCMP Harassment:

- Prohibition on wellness checks without court order
- Prohibition on targeting parent for seeking help
- Requirement for legitimate cause for any police contact

2. Protection from Governor General's Office:

- Prohibition on weaponizing mental health services
- Prohibition on retaliation for seeking help
- Requirement to treat petition with good faith

3. Protection from Government Agencies:

- Prohibition on harassment by Solidarité Sociale
- Prohibition on illegal clawbacks
- Requirement to provide services without discrimination

4. Personal Security:

- Private armed security (as requested in cease-and-desist)
- Medical retreat in Oka (as requested)
- Protection from ongoing harassment

SECTION 9: WHY JUDGE NEEDS TO SEE THIS

Complete Picture of Systemic Failure

This judge needs to understand that:

- x Not just Quebec Government failed
- x Federal Government also failed
- x Multiple agencies at multiple levels failed
- x Family has NO SAFE RECOURSE
- x Emergency measures are NECESSARY

Pattern of Coordinated Abandonment

The pattern is consistent across all levels:

- x Initial contact: Family seeks help
- x Response: Silence or minimal response
- x Escalation: Family persists
- x Retaliation: Government agencies target family
- x Final outcome: Complete abandonment

Justifies Emergency Measures

Because the family has been failed by ALL levels of government, emergency protective measures are not just justified—they are NECESSARY.

Sets Precedent for Other Families

This judge's decision will determine whether:

- ✓ Families can seek help without retaliation
 - ✓ Government agencies can be held accountable
 - ✓ Emergency measures protect vulnerable families
 - ✓ Systemic failures result in systemic reforms
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SECTION 10: RECOMMENDATION FOR JUDGE

This Judge Should:

1. **Recognize federal failures** as part of complete systemic abandonment
2. **Award emergency protective measures** to protect family from ongoing harm
3. **Note that federal investigation** will proceed separately
4. **Order that Quebec Government** cannot claim federal responsibility
5. **Protect family's right** to pursue federal claims

This Judge Should NOT:

- x Treat federal failures as separate from Quebec failures
 - x Award minimal emergency measures
 - x Accept government explanations
 - x Fail to recognize ongoing threats
 - x Dismiss family's need for protection
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CONCLUSION

The systemic failure extends beyond Quebec Government to Federal Government. Multiple federal agencies failed this family:

- Federal MPs ghosted
- Federal Senators did not intervene
- Governor General's office weaponized mental health services
- RCMP conducted harassment
- CHRC offered limited response
- AFN did not intervene

Federal failures are documented here to show the complete systemic abandonment, but are NOT part of the Quebec lawsuit. They are part of a

SEPARATE federal investigation.

However, these federal failures demonstrate that the family has NO SAFE RECOURSE and EMERGENCY PROTECTIVE MEASURES ARE NECESSARY.

This judge's decision will determine whether the family is protected from ongoing government harassment and whether systemic accountability begins now.

Status: COMPLETE DOCUMENTATION FOR COURT FILING **Date:** April 5, 2026 **Prepared by:** Self-represented victim and family **All family members as co-plaintiffs**

This documentation demonstrates that the systemic failure extends to the Federal Government. Emergency measures are necessary because the family has been abandoned by all levels of government and faces ongoing harassment from government agencies.